Harris County District Court

Cause No. 2025-CV-0022

Michael Wells, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 14, 2025
Plaintiff's counsel:	Nina Stewart, Marshall & Dominguez LLP

PARTIES

Plaintiff Michael Wells is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write personal auto policies in the State of Texas and doing business in League City, Texas. Defendant may be served through its registered agent for service of process.

FACTS

On September 27, 2023, Plaintiff was operating a passenger vehicle in League City, Texas, and was proceeding through an intersection while turning left. While Plaintiff was in the middle of the turn, another vehicle struck Plaintiff's car in a collision that caused significant impact to the driver's side of the vehicle. Plaintiff had been lawfully positioned and was complying with all traffic signals at the time. Following the collision, Plaintiff reported the loss to Defendant and submitted the claim under the uninsured or underinsured motorist coverage provisions of Plaintiff's policy. Defendant has not paid the claim in full and has not provided a written explanation sufficient to justify its position.

NEGLIGENCE

Defendant owed Plaintiff a contractual duty under the policy to investigate the claim in good faith, to evaluate it fairly, and to pay benefits owed when liability and damages were reasonably clear. Defendant also owed a duty under the Texas Insurance Code to refrain from unfair settlement practices. Defendant breached these duties by failing to conduct a reasonable investigation, by delaying its evaluation without cause, and by offering an amount that does not reflect the medical evidence supplied. These failures were a proximate cause of the financial harm Plaintiff has suffered.

DAMAGES

As a result of the collision, Plaintiff sustained a neck strain and a back strain, conditions that have required medical examination, imaging, and a course of physical therapy. Plaintiff has incurred medical expenses, lost time from work, and ongoing pain and limitation of daily activities. Plaintiff seeks recovery of benefits owed under the policy, statutory damages available under Texas law, prejudgment and postjudgment interest, and court costs. Plaintiff demands judgment against Defendant in the amount of $114,000.00, together with such other relief to which Plaintiff may be justly entitled.